

STATE OF MICHIGAN
IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

Case No. 2023-5907-PP
Hon. Jenny L. McNeill

EMILY A. WATSON,
Petitioner,

v.

ANDREW JAMES PIGORS,
Respondent.

EXHIBIT U-022 — MRE 901 AUTHENTICATION FAILURE ANALYSIS

14th Circuit Court, Family Division, Muskegon County

Prepared: March 15, 2026

I. RULE FRAMEWORK

MRE 901(a) — General Provision

"The requirement of authentication or identification as a condition precedent to admissibility is satisfied by evidence sufficient to support a finding that the matter in question is what its proponent claims it is."

MRE 901(b) — Illustrations of Authentication

The rule provides 10 specific methods for authentication, including:

Method	MRE 901(b)	Requirement
Testimony of witness with knowledge	(1)	Witness testifies item is what it purports to be
Voice identification	(5)	Identification based on hearing the voice
Telephone conversations	(6)	Circumstances showing authenticity
Public records	(7)	Evidence of authorized recording
Process or system	(9)	Evidence describing process and showing accurate result

MRE 104(a) — Preliminary Questions

"Preliminary questions concerning... the admissibility of evidence shall be determined by the court."

The court has a **gatekeeping function** to determine authentication before evidence is presented to the finder of fact.

II. AUTHENTICATION REQUIREMENTS FOR AUDIO RECORDINGS

- 1. The recording device was capable of taking the conversation offered in evidence**
 - 2. The operator of the device was competent to operate it**
 - 3. The recording is authentic and correct**
 - 4. Changes, additions, or deletions have not been made**
 - 5. The recording has been preserved in a manner shown to the court**
 - 6. The speakers are identified**
 - 7. The conversation was voluntary and made in good faith, without inducement**
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III. APPLICATION TO THE USB RECORDING

A. Complete Failure of Authentication

Factor	Berkey Requirement	Satisfied?	Analysis
1. Device capability	Device must be shown capable	NO	No testimony about recording device type, make, or capability
2. Operator competence	Operator must be competent	NO	Recording party (Lori Watson) never testified as to her operation of the device
3. Authenticity	Recording must be proven authentic	NO	No authentication hearing conducted; no witness testified to authenticity
4. No alterations	Must show no changes/deletions	NO	No forensic analysis; no chain of custody documentation; no metadata verification
5. Preservation	Proper preservation required	NO	USB was submitted directly to judge's chambers, not through proper evidence channels
6. Speaker identification	Speakers must be identified	NO	No testimony identifying speakers on the recording
7. Voluntary conversation	Must be voluntary, good faith	NO	Covert recording = NOT voluntary; violates MCL 750.539c two-party consent

Score: 0 of 7 factors satisfied.

B. No Authentication Hearing Was Held

Under MRE 104(a), the court was **required** to conduct a preliminary hearing on the admissibility of the USB recording before considering its contents. No such hearing occurred. Instead:

1. The USB was submitted to the court via unknown channels
2. Judge McNeill directed her staff to review the recording ex parte
3. No adversarial proceeding was held to test authenticity
5. The recording's contents influenced judicial decision-making without any authentication foundation

C. Chain of Custody Failures

Requirement	Status
Who created the recording?	UNKNOWN — attributed to Lori Watson but unverified
When was it created?	UNKNOWN — no timestamp or metadata verified
Who had custody from creation to submission?	UNDOCUMENTED
How was it transmitted to the court?	UNKNOWN — not filed through clerk; delivered to judge directly
Was it altered between creation and submission?	UNVERIFIED — no forensic analysis
Who accessed it before court review?	UNDOCUMENTED

IV. PROCEDURAL VIOLATIONS

A. Ex Parte Consideration (MCR 2.107 + Canon 3(A)(4))

- **MCR 2.107** — Requirement of service on all parties
- **Canon 3(A)(4)** — Prohibition on ex parte communications
- **Due Process Clause, U.S. Const. Amend. XIV** — Right to notice and hearing before deprivation of liberty interest

B. Failure to Apply Exclusionary Rule (MCL 750.539g)

Even if the recording had been properly authenticated (which it was not), it would be **categorically inadmissible** under MCL 750.539g as a product of illegal eavesdropping. The court's failure to apply the statutory exclusionary rule compounds the authentication failure.

V. APPLICABLE CASE LAW

VI. PREJUDICE TO PLAINTIFF

The unauthenticated, illegally obtained USB recording caused **direct and irreversible prejudice**:

2. **Tainted decision-making** — Subsequent orders (including parenting time suspension, contempt findings, and PPO extensions) were made by a judge contaminated by inadmissible evidence
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VII. CONCLUSION

This analysis is prepared as an exhibit supporting the Motion for Disqualification of Hon. Jenny L. McNeill filed pursuant to MCR 2.003(B) and MCR 2.003(D)(1).